

25SMCV04299 25SMCV04299

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-07-14

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SM%20%2CP%2C07%2F14%2F2026

Source SHA-256: 8d85c85502ffd9182611acff41a3f7e235f59e1e7c1eb527328111fe5f652578

Case Number: 25SMCV04299 Hearing Date: July 14, 2026 Dept: P

Tentative Ruling

Security

National Insurance Company v. Cox Automotive, Case No. 25SMCV04299

Security

National Ins. Co.'s Motion for Leave to Amend to File a Second Amended Complaint

Hearing:

July 14, 2026

Background

Plaintiff

Security National Insurance Company, as subrogee of its insured Detention Equipment Specialties, Inc. ("Detention Equipment"), sued Cox Automotive and Does 1-25 for negligence and breach of contract (only Doe defendants) arising from the theft of a car. Plaintiff alleges that its insured entered into a contract with defendant to transport a 2024 Cadillac Escalade from Beverly Hills, CA to Carson City, NV. (Complaint, ¶ 8.) Plaintiff alleges that Defendant operates an online platform that connects brokers and car dealers with licensed auto transport carriers. (Complaint, ¶ 6.) Plaintiff claims that its insured contracted with Rodz and Bodz LLC ("R&B") to transport the vehicle, who posted the job on Defendant's platform. (Complaint, ¶ 8.) Plaintiff claims that Cruzin' Auto Carriers ("Cruzin") bid and accepted the transportation job. (Complaint, ¶ 9.) Instead of Cruzin,' Plaintiff alleges that Foundation Transportation picked up the car and transported it to an

unknown party. (Complaint, ¶ 10.)

On

October 30, 2025, the Court sustained Cox Automotive's demurrer with leave to amend.

On

November 7, 2025, Plaintiff filed the First Amended Complaint ("FAC").

On April

28, 2026, the Court sustained Cox Automotive's second demurrer without leave to amend, finding that Plaintiff could not state a claim against Cox Automotive as owner of the online platform because Cox Automotive did not owe it a duty of care.

On June

17, 2026, Plaintiff filed this motion for leave to amend to file a second amended complaint naming Silvertip Automotive Group, Inc. as a defendant. As of July 13, 2026, no opposition has been filed. National Ins. Co. argues that Silvertip had custody and control of the vehicle and released it to the unauthorized carrier. (Motion for Leave to Amend, ¶ 2.)

Motion

for Leave to Amend

The trial

court has discretion to allow amendments to pleadings in the furtherance of justice. (Code Civ. Proc. § 473, subd. (a)(1).) "Any judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading." (Code Civ. Proc. § 576.) "There is a policy of great liberality in permitting amendments to the pleadings at any stage of the proceeding." (Berman v. Bromberg (1997) 56 Cal.App.4th 936, 945 [citations omitted].) "An application to amend a pleading is addressed to the trial judge's sound discretion." (Ibid. [citations omitted].) A judge may deny a motion for leave to amend where a moving party has been dilatory in seeking leave to amend and such delay has prejudiced the opposing party. (Hirsa v. Superior Court (1981) 118 Cal.App.3d 486, 490 ("Hirsa").) "It is difficult to understand how [a named defendant] can be prejudiced by amendment to add an additional theory of liability against it." (Ibid.)

“[I]t is

an abuse of discretion to deny leave to amend where the opposing party [is] not misled or prejudiced by the amendment.” (Kittredge Sports Co. v. Superior Court (1989) 213 Cal.App.3d 1045, 1048 (“Kittredge”).) Prejudice exists where the amendment would require delaying the trial, resulting in loss of critical evidence, or added costs of preparation. (Solit v. Tokai Bank, Ltd. New York Branch (1999) 68 Cal.App.4th 1435, 1448 (“Solit”).)

Following

a review of the Kirsch Declaration and the attached proposed second amended complaint, the Court finds that Plaintiff has met the procedural and substantive requirements on a Motion for Leave to Amend. This case is not yet at issue; and this motion was brought without significant delay. Absent any opposition showing prejudice to defendants, the Court finds that leave to amend is appropriate.

Conclusion

Plaintiff’s

Motion for Leave to Amend is GRANTED.